

KIRK v. KIRK

22CV46213

EXECUTOR OF (DEFENDANT) ESTATE'S MOTION FOR SUBSTITUTION OF PARTY

This case involves partition and accounting of real property between two 50% owners.

Defendant William Gary Kirk, Jr. has passed away. The motion before the court seeks to substitute the estate's executor, Angela Lynn Kirk, for decedent. However, the moving papers fail to include the language required by Local Rule 3.3.7.

All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff. 7/1/06; As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court. [Emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

In the instant matter, the Court finds that considerations exist to excuse non-compliance with Local Rule 3.3.7 in the interests of judicial economy. (Plaintiff is cautioned this is a rare instance where the Court does not deny a pending motion for the failure to include the mandated language which will be strictly required in future Law and Motion matters).

Plaintiff has remedied the status of the parties by filing an amended complaint substituting the executor for the decedent. Therefore, this motion is **DENIED** as moot.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal Order is required.

TANNER v. HATCHER

22CV46354

DEFENDANT'S MOTION TO TAX COSTS

Plaintiffs submitted a Memorandum of Costs after trial. Defendant has brought this motion to tax costs. Plaintiffs made a Code of Civil Procedure (CCP) Section 998 Offer to Compromise for \$25,000 on March 17, 2023, but It was not accepted. After trial, the court ordered Judgment in favor of plaintiffs for \$30,074.00, i.e., an amount greater than plaintiffs' pre-trial offer. The submitted Memorandum of Costs included costs associated with John R. Gibson (expert) amounting to \$2,525.63 and post-CCP § 998 offer interest of \$2,527.40.

The California Supreme Court has established that a plaintiff can recover post-offer costs for an expert witness if three conditions are met: (1) the plaintiff makes an offer to compromise that meets the statutory time and content requirements; (2) the defendant does not accept the offer; and (3) the defendant does not obtain a result in the action that is more favorable than the offer (*Martinez v. Brownco Construction Co.* (2013) 56 Cal.4th 1014, 1020). In assessing these criteria, the recovery of expert fees depends on the reasonableness of the offer, the outcome compared to the offer, and the court's discretion. (*Id.*; *Gonzalez v. Lew* (2018) 20 Cal.App.5th 155, 160)

The losing party cannot simply argue that the submitted costs were not necessary or reasonable. Rather, the losing party must present evidence to prove that the claimed costs are not recoverable (*Seever v. Copley Press, Inc.* (2006) 141 Cal. App. 4th 1550, 1557). The defendant has not met the burden to establish that the costs are not chargeable or are unreasonable.

In response to defendant's Motion to Tax Costs, a Declaration of John R. Gibson was submitted, detailing the time the expert witness spent after the expiration of the CCP § 998. No objection to the validity or reasonableness of CCP § 998 offer was made, the services listed in the Declaration of John R. Gibson are reasonable, they relate to post-offer tasks, and were necessary for the trial.

Defendant's Motion to Tax Costs is **DENIED**.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiffs to prepare a formal Judgment in conformity with this Ruling.